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Mr. Pro - Se
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USA

IN THE UNITED STATES DISTRICT COURT
IN AND FOR THE WASHINGTON DISTRICT OF COLUMBIA

_____ Individually,
PETITIONER

Case No.:

PETITION FOR WRIT OF MANDAMUS

vs.

Joseph B. Edlow
In His Official Capacity
RESPONDENT

Jurisdiction

This Court has Jurisdiction per Article III US Constitution, 8 U.S.C. 1182, 20 CFR 655,

Venue

Venue is proper in this Court as Respondent directs the USCIS from Washington DC

Parties

Petitioner <This Dude>, an individual person, “Interested Party”, “Aggrieved Party”, and a
“Displaced American Worker” Per 20 CFR 655.

Respondent Joseph B. Edlow as the director of USCIS, and the party to mandate by the writ
sought.

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Background:

All of the statistical claims made herein are taken from the LCA Disclosure Data published by the US DOL.

Standing

Petitioner stands in this matter as follows:

Petitioner is an experienced worker and business person with at least thirty years experience working for hire under in occupations classified under SOC Code 15-12xx. Petitioner demonstrates in part, his qualifications to do that work by the Data Analysis described herein that is used to discover and expose the collusive fraud that is used by more than one thousand Indian Scammer IT Companies to falsely claim they cannot find American workers for Specialty Occupations they are supposedly employing, in order to traffic Indian workers into American Jobs.

Petitioner works in Specialty Occupations, for hire, as a W2 Employee, as president of and worker for a sole person corporation, (Corp to Corp), and occasionally as an unincorporated Sole Proprietor. ("Gig Worker" / 1099). Petitioner is aggrieved by the irreparable displacement in employment and loss of lucrative business that has been caused by the H1B Visa Program since at least 2008.

Nature of Action:

Petitioner seeks a Writ Of Mandamus to compel respondent to perform the following mandatory official duty:

Terminate indefinitely issuance of any further H1B Visas, and revoke all current H1B Visas in issuance, on the following grounds:

Respondent has Failed to perform a clear and non-discretionary public duty:

Respondent's failure to terminate the H1B Visa system the moment he took office is the breach to duty that is cause for this petition. The imperative for the doing of that duty was imposed on him by the conduct of prior multiple administrations. As such it is not a specific failure on the part of respondent that caused the problem, the failure was to stop it immediately. As long as that failure continues, Mandamus is in order. The duty owed Petitioner is the same duty owed all American workers. To terminate abuse of government programs by foreign entities and nationals that is adversely affecting Americans. That is non-discretionary. Further there exists a non-discretionary duty to keep it from happening in the first place. Respondent was tasked with that duty as well the moment he took office.

Because the evidence presented herein was obtained from source known to Respondent, Respondent can be taken to know all of it and its implications.

Lack of adequate legal remedy exists to correct respondent's failure

Because of the size and scope of the problem ordinary civil actions against the violating parties are inadequate. It would almost certainly require naming a class defendant of all the Visa abusers, yet even that possibility is inadequate as individual parties may opt-out of that class, and thereby increasing the scope of litigation by orders of magnitude. Regardless civil action against these violators is not an appropriate remedy because it is the breach of duty by respondent that allowed the problem in the first place, and it is a breach of duty by respondent to allow it to continue. Further, it is not displaced American workers' obligation to fix the problem. American workers did not create the H1B Visa Program. American workers are not tasked with managing it. American workers to not have any official capacity to terminate it, nor prosecute violators. All of those fall on Respondent. It is Respondent that caused the displacement of American by failure to do a mandatory duty, it is Respondent that needs to fix it by doing that duty, and since he is not, he must be made to do that duty.

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Additionally because criminal activity is a component of Visa system abuse, and because there exists clear and convincing evidence that criminal activity is taking place, remedy for that falls outside ordinary civil litigation by the public. It is an ordinary standard of duty that criminal activity mandates official act against it, and that if the criminal activity is felony, that mandate includes arresting the perpetrators. Official capacity to cease criminal activity connected to H1B Visa abuse is wholly Respondents.

Respondents Unreasonable Delay In The Performance of said mandatory duty

As stated, the H1B Visa program should have either been terminated, limited or regulated as long ago as 2008. It is irrelevant that Respondent just took office. The moment he did he took responsibility for the duty assigned to him.

Respondent's failure to act violates the Rights of American workers, Citizens and Businesses as follows:

Peace and Dignity:

It offends the peace and dignity of every American worker to have foreign corporations operating on American soil falsely claiming they cannot find American workers to fill jobs, in order to import foreign workers, and give those jobs to them.

It is an offense to the Peace and Dignity of every American to have foreign corporations start or assist with starting more than 1,000 domestic corporations, and staff them with foreigners for the purpose of colluding with foreign corporations to falsely claim that they cannot find American workers in order to traffic foreign workers to foreign corporations displacing American workers.

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It is an offense to the Peace and Dignity of every American for corporations foreign and domestic to collude for the purpose of engaging in anticompetitive business practices,

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market-rigging practices and market cornering practices to displace American workers and take business away from American companies.

Life:

The Right to Life includes the quality thereof. By stealing an entire market of lucrative jobs, and businesses, Indian scammers have deprived Americans of that lucre, and the quality of life it brings, and stolen it for themselves.

Liberty:

The Right to Liberty includes Liberty to Contract, and the Liberty to pursue a career. That Liberty has been stolen from American workers by a concerted effort of thousands of Indian scammers using fraudulent LCA Filings to traffic foreign workers into American corporations, to take American Jobs.

Property:

Property is anything of value. Value is the object of any human desire. Petitioner among tens of thousands of Americans similarly situated desire to profit, pay their expenses, provide for their families and for their elderly years. Those are all items of Property. The H1B Visa program violates American Rights to that Property by creating an avenue for Indian scammers to take that property away from Americans, as described in this Petition.

Commerce:

The H1B Visa program Violates Americans' Right to Engage In Commerce because it creates an avenue for Indian scammers to engage in anticompetitive, collusive, and monopolistic business practices, as described in this Petition, and those business practices displace American workers and interfere by a pattern of wire fraud, bribery, ID fraud, citizenship and naturalization fraud, obstruction, Visa fraud, immigration fraud, human trafficking, and other RICO acts, with American companies pursuing and profiting from

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interstate and foreign commerce.

Constitutional Grounds For Granting Writ

The H1B Program is enabled by statute, specifically 8 U.S.C. 1182(n), and is regulated by 20 CFR 655.

The enabling statute is vague because it lacks language necessary to prevent the colossal fraud described herein.

Violation of Separation of Powers. The statute transfers adjudicative and legislative powers to executive branch.

The statute violates Rights of Americans as described supra.

Constitutional Standards of Review:

Strict Scrutiny:

There exists NO COMPELLING OBJECTIVE whatsoever for the program. To that end the burden of proof is upon Respondent, and Respondent must show the Compelling Objective. Failure by Respondent to show compelling objective voids any statute, regulation, policy, or custom that violates Fundamental Rights.

Less restrictive alternatives exist:

Business sponsored scholarships are tax-deductible, and can easily supplant the importation of foreign workers. Simply because a company can't find a worker does not mean they cannot create one.

Remote work. Given the advent of remote work, the potential talent pool available to employers increases exponentially.

Rational Basis:

Arbitrary: There is nothing more arbitrary than a lottery. To the stated objective of the law, the individuals selected should be selected by aptitude, not random chance, and their aptitude should be determined by American workers already present at the sponsoring employers, occupying the same specialty for which the LCA was filed.

Caprice: The capricious nature of the program is a product of the caprice of its users, who either somehow believe or have the attitude that American workers are inferior.

Facts:

Indian Scammers have massively exploited the H1B Visa system to effect a complete denial of employment to American Workers. They have done this by creating a multitude of Small House IT Companies (SHITCOs), who act as “Visawali”, “Visa Peddlers” to larger IT companies by flooding the Department Of Labor with fraudulent LCAs, and then transferring whatever Visas they are able to obtain, to these larger companies. These actors are fraudulent because they do not have any actual contracts with customer companies, but instead, act as “Tier-1 Vendors”, or “Implementation Partners” to the larger Indian IT companies, who have the actual contracts with American Companies. They do not offer those jobs to Americans “in good faith”, much less at all. They use phony job listings on jobs websites to create the false pretense of offering those jobs “in good faith”, and use automated systems to continue to update job listings to maintain that appearance, when at all times those jobs are predestined for H1B Visa holders.

In short, the SHITCOs all follow the same scam template:

In no case is the actual work done by the H1B Visa holder done for the SHITCO itself. They always act as placement agencies, and will claim an American Company as the

SECONDARY_BUSINESS_ENTITY in their LCA Filings. At no time do these SHITCOs

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have any kind of direct contract with the American Company client. At all times they are acting as 4th-party middlemen. In some cases they may actually mention the prime vendor to the Client in their LCA, but in many cases they do not. Regardless, while they may be the party that actually pays the worker, it is the end client that receives the work product, not the prime vendor, but, the worker must execute agreements with that vendor to the same extent as a direct employee of that vendor even though that person is claimed to be a contractor to this vendor. These prime vendors then misrepresent to their clients that the actual worker is their employee, when in fact that person is an employee of, or a contractor to an outside partner. From the clients' perspective all of these individuals appear as employees of their prime vendors. They are usually unaware that their prime vendors are working with hundreds of smaller companies to illegally file extra Visas to place people with them. Then, at some point the Visas will be transferred, and become cap exempt, and the SHITCO can apply for more Visas, and the main vendor can make them PERM. They have been at this scam for at least twenty years.

Free Press Publications:

Petitioner gives this Court Judicial Notice of the following free press publications in aid of its Jurisdiction in this matter.

Two well respected scam busters with thousands of hours of time and effort between them exposing Indian scammers discuss how they exploit systems like H1B:

<https://youtu.be/7zXMPzCrInc?t=4689>

The trajectory of H1B fraud by Indian scammers over the years:

https://www.pewresearch.org/wp-content/uploads/sites/20/2025/03/SR_25.03.04_h-

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[1b_3.png](#)

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Note the distinctive inflection point around 2008 followed by a positive slope.

Senator Sanders discussing the disproportionation of H1B Visas to “India Focused” IT Firms:

[https://www.reddit.com/r/AmericanTechWorkers/comments/1nmb3ri/bernie_sanders_warni
ng_us_about_h1b_visas_17/](https://www.reddit.com/r/AmericanTechWorkers/comments/1nmb3ri/bernie_sanders_warni_ng_us_about_h1b_visas_17/)

Investigations By Petitioner:

Petitioner investigating one previously known WILLFUL_VIOLATOR, Srinivasa Reddy Kandi, is documented in this YouTube video:

<https://www.youtube.com/watch?v=WWPx-9tNn-w>

The above video describes thousands of LCAs filed, ALL on behalf of entirely non-existent companies, claiming some of the largest corporations in the market as their clients. All of the phony front companies in this video are tied to multiple parties at a single residential address, 6688 EXCELSIOR PL, FRISCO TX. There is one record in LCA Database that shows that same address as the WORKSITE_ADDRESS:

EMPLOYER_NAME: ABSOLUTE INFORMATION TECHNOLOGIES

Searching the database for either EMPLOYER_NAME or SECONDARY_ENTITY_BUSINESS_NAME matching ABSOLUTE INFORMATION TECHNOLOGIES, reveals ninety-three records with ten of them being associated with TekOrg. Doing the same search for TekOrg reveals 2,325 more records, where the majority of them have the exact same JOB_TITLE. When a SECONDARY_ENTITY is defined in these records, many of them are just yet another SHITCO.

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One address for TekOrg resolves to a residential apartment that may or may not be occupied, but is certainly not occupied by the 1,618 beneficiaries of LCAs that were filed by TekOrg with that location as the WORKSITE_ADDRESS. All of those LCAs have the same JOB_TITLE, and all of them have SECONDARY_ENTITIES defined, with most of those being additional SHITCOs. The total number of LCAs (past 3 years), that have been filed with a WORKSITE_ADDRESS at that apartment is 1,628. Five of the additional ten beyond those filed by TekOrg were filed by COGNIZANT TECHNOLOGY SOLUTIONS US CORP. This reveals a nexus between Srinivasa Reddy Kandi, and COGNIZANT, a large IT Services provider, incorporated in New Jersey, and operated by Indian nationals.

Synechron – New York City

Excessive filings, more than might actually fit in their office. Contacted EMPLOYER_POC. He claimed he was driving and could not talk. He agreed to take the call a half hour later. Called back multiple times, no answer, directed to voicemail, which was full. Petitioner contacted a messenger service in NYC to see if they could go to office location to determine if there actually was an active business there. That building does not allow persons to deliver directly to offices, but instead to a messenger center on the ground floor. For now, Petitioner is unable to determine Labor Conditions at that location.

Office Depot – Boca Raton Florida

Numerous LCA filings but no corresponding jobs on their website. Contacted EMPLOYER_POC, Jamila Paradas. That POC refused to disclose anything from their Public Access File, or assist with verifying Labor Conditions at the worksite, and ended the call. Petitioner filed a complaint with U.S. DOL WHD.

Majestic IT – Boca Raton / Deerfield Beach Florida

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Went to both locations listed in LCA Disclosure Data. Boca Raton location was occupied by another tenant. Office was small, no more than two persons could work comfortably. Left

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LCA Review / PAF Challenge request with contact information under door. Majestic IT filed for eighteen LCAs at this address. At the Deerfield Beach location the office was leased to Majestic IT, but no one present. Again, office appeared to be for two to three persons, not the _____, for which LCAs were filed.

JM Family Companies – Deerfield Beach Florida

NO LCAs filed at all. Not typical of larger companies. Typically they will have one or more LCAs filed in their own name. In this case all LCAs filed for persons placed at JM Family Companies are by others, and JM Family Companies is shown as the SECONDARY_BUSINESS_ENTITY.

510 Franklin Ave, Nutley NJ – A High Tech Mecca

This nondescript former theatre has eight businesses occupying seven suites who claim the biggest names in industry as their clients. Sent an inspector there, and there appears to be nobody present at that address. Contacted the property manager, and he claimed that the suites were actually occupied, but that he did not know who the tenants were. Nexus is John Boudia Law Firm.

KFORCE

Several indicia of fraud:

KFORCE uses illegal background checks to disqualify American workers. They use prior criminal convictions as cause to PERMANENTLY remove those persons from consideration. These background checks are illegal because KForce deliberately does not provide adverse-action notice to persons prior to taking adverse-action against them on basis of the background check report, but rather immediately and permanently blacklists them, so that they can claim that they cannot find American workers KForce uses false offers of employment, (false pretenses), to run background checks on people, so they can permanently disqualify them, and claim that they cannot find American workers. KForce

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illegally runs background checks on persons who are not its employees, again to disqualify American workers and contractors, as described in the circumstances described infra.

On 22 September 2025, Petitioner Received a solicitation from ConvexTech Inc for a remote role with KForce at UMMS In Maryland. (University of Maryland Medical System). The email Petitioner received suggested that the actual employer would be UMMS. Later while speaking to a person located in India, that person claimed KForce would be the actual employer. The job did not appear anywhere on the UMMS Jobs website, nor the KForce jobs website.

Maryland state agencies and Universities have filed more than two thousand LCAs in the past three years. Maryland is a known region for people from India to immigrate, and form SHITCOs. Searching for ConvexTech in the LCA Database reveals that their EMPLOYER_ADDRESS resolves to a small Regus™ virtual-office or shared office, and that for the thirty-one LCAs filed in the past three years, by ConvexTech, twenty-seven of them resolve to a single SECONDARY_BUSINESS_ENTITY. (This is one indicia of fraud). That client, is CyberMart LLC. The LCA Disclosure Data shows three separate WORKSITE_ADDRESS locations for CyberMart LLC. Two of them resolve to vacant lots in Texas, (certain indicia of fraud), the third resolves to a Regus™ virtual-office or shared office. As for the online inventory of CyberMart, it is around fifty items per category. None of those items are unique, original, or extra-ordinary, and all of them are exactly the sort of items that stock the shelves of thousands of small independent grocery stores, “bodegas”, neighborhood markets, and convenience stores around the country, and are readily available from distributors like McLane, and Core-Mark. Additionally, CyberMart appears to be soliciting independent sellers to use their online platform to sell their own products, for zero commission and zero registration fees.

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KForce has made it publicly known that Petitioner is permanently barred from employment

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and business with them. Petitioner has brought legal actions against KForce in the past and in their pleadings they have unequivocally stated that they will not hire Petitioner. In this instance after responding to the solicitation from ConvexTech, and contacting their agent, who was physically located in India, Petitioner replied to the email he received, requesting submission for the role. At this point in ALL other cases, the soliciting party sends a “rate confirmation” email, which petitioner confirms, and then the soliciting party at least claims they are submitting Petitioner's application to the hiring party. In this case, the party contacting Petitioner stated that he would submit Petitioner's Resume to the manager and get back to Petitioner. In Indian scammer IT Staffing parlance, forwarding something to a manager is a euphemism for doing nothing.

In two prior recent instances, Petitioner was contacted by other parties physically located in India, but claiming to be representing SHITCOs located in America, for roles through KForce, typical fourth-party Indian deals. In the earliest of the two, Petitioner simply skipped these interloping parties, and attempted to contact the end client directly by phone, but no one ever answered or called back. Petitioner submitted their Vendor Application to them on behalf of his corporation, but never received any response. The employer in that case was Corewell Health, who has filed 157 LCAs on its own behalf, and has an additional 30 filed on its behalf by SHITCOs. The second of these two prior instances involves an employer in Petitioner's “ordinary commute distance”, AutoNation, which has filed thirty-seven LCAs on its own behalf, (past three years), with an additional seventy-seven filed on its behalf by mostly SHITCOs, but also Tata Consultancy Services and Compunnel. Petitioner will ultimately be doing a Labor Conditions Review and PAF Challenge for those LCAs

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Because there was no reason for KForce to contact Petitioner in the first place, it appears that KForce is using its blacklist deliberately to claim that they contacted American workers, but none are employable, in order to give the role to current H1B Visa holders under its

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employ who are currently “benched”, (i.e. between assignments), or for whom KForce has otherwise previously received a Visa. The reason for this is that as a Visa sponsor, KForce is obligated to continue to pay prevailing wages to its Visa beneficiaries even during down time, and by its own count has successfully processed 38,000 Visa cases. This is substantiated as follows:

KForce claims that it ranks in the top 1% for Visa Sponsorship in the U.S., and that all of its consultants are W-2 employees.

<https://www.kforce.com/solutions/international-talent-solutions/>

KForce openly advertises itself as a Visa sponsor:

<https://www.kforce.com/find-work/visa-sponsorship-solutions/>

KForce offers, or claims to offer comprehensive assistance of various types to foreign workers including:

Visa Remediation, (addressing and resolving “even the most complex visa issues to ensure successful engagement)

Direct marketing of candidates to end clients, and;

Consultant Redeployment:

“Before your current assignment ends, our redeployment team of experienced staffing specialists are already working to find your next opportunity.”

This is a service that KForce never provides to its American workers.

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During a previous investigation of KForce, Petitioner contacted them as a client, and requested a programmer for an entry-level programming task which many Americans offer

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on Craigslist, Freelancer, and UpWork. During the conversation, the recruiter acknowledged that Kforce runs background checks on all persons it places at clients, and that if such persons have criminal records “we don't ever deal with them again”. Finally in that conversation, when Petitioner asked about the possibility of obtaining a foreign worker, that account manager stated that it “could be arranged”. At no time did that person ever state that it would only be possible if an American worker could not be found.

Robert Half

Several Possible indicia of fraud.

9250 Bay Harbor Drive

Condo In Miami. Not An IT Company HQ.

Here is the math:

The top ten offshore IT Services using SHITCOs as fronts:

Tata Consultancy Services, an Indian Corporation.

Cognizant, incorporated in New Jersey where identity of corporate officers is not publicly disclosed, Incorporated and operated predominantly by Indian nationals.

Infosys, an Indian corporation, U.S. Headquarters in Richardson Texas.

Capgemini, incorporated in France, with a large Indian workforce in India, used to traffic Indian nationals into American Jobs.

LTIMINDTREE Incorporated in New Jersey, formerly operating as Larsen and Toubro.

HCL, Indian company with U.S. Headquarters in Sunnyvale California.

Accenture, Irish corporation, used to traffic Indian nationals into American Jobs.

Wipro incorporated in New Jersey

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Compunnel. supposedly not Indian, incorporated in New Jersey

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Tech Mahindra, part of Mahindra group, US HQ Plano TX.

Literally ten companies are served by more than one thousand “Visawali”, what this means is that they are able to increase their chances of lottery winning, by three orders of magnitude, while at the same time obscuring the discovery of their fraud by the same factor. (See Exhibit __),

This is deliberate and intentional, and there is evidence to suggest that these SHITCOs that act as “Visawali”, were all funded by the larger IT Vendors for the purpose of exponentially increasing the number of LCAs they can file.

Submitted to the Court, This _____ Day _____, 20____.

Mr. Pro - Se

Certificate of Filing and Delivery:

The Original of This Document was delivered to the Court on

_____, by Petitioner, via United States First Class Mail

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